

ORIGINAL

(S E R V E D)
(October 2, 2000)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

October 2, 2000

DOCKET NO. 00-04

AL KOGAN d/b/a GALAWAY INTERNATIONAL

v.

WORLD EXPRESS SHIPPING, TRANSPORTATION AND
FORWARDING SERVICES, INC. d/b/a W.E.S.T.
FORWARDING SERVICES (FMC LIC. #3118-R)

**NOTICE OF INTENT TO DEFER RULING ON MOTION TO
LIFT PROTECTIVE ORDER PENDING REPLY OF RESPONDENT
AND FURTHER ENCOURAGEMENT TO CONSIDER SETTLEMENT**

Complainant/Counter-Respondent Al Kogan dba Galaway International (Al Kogan) has filed a motion asking that the protective order issued orally and confirmed later on August 24, 2000, be lifted presumably so as to allow counsel for Mr Kogan to make use of the deposition of Mr Peter Janetzki without the limitations imposed by the protective order Reply to the motion is not due until October 13, 2000 pursuant to 46 C.F.R. 502 74(a)(2) (15 days after date of service), although

respondent, of course, may file its reply earlier. I cannot rule on the motion until respondent has replied to it. However, there are a few matters that need clarification.

According to the current schedule, after completion of the depositions that were taken in Chicago and, barring any further depositions, discovery was to conclude by October 2, 2000. Thereafter a conference with counsel was to be held to discuss the future course of the proceeding. (See Discovery Schedule Approved and Adopted, June 19, 2000.) In a previous ruling the parties were advised that the Commission encourages settlements and the use of alternative means of dispute resolution or, if necessary, summary judgment procedures. However, it appeared to be premature to discuss such matters until completion of the depositions. (See Rulings Made at Special Conference Dealing with Discovery and Other Matters, June 5, 2000.) Now that depositions appear to have concluded in Chicago, it appears that the time is ripe for discussion of possible settlement, or the use of a Commission mediator, settlement judge, etc. The parties should now have learned more about the strengths of their claims and defenses by means of the depositions and should be in a better position to consider the wisdom of bringing this litigation to a conclusion by settlement, mediation or otherwise. The pending motion, however, raises questions about future procedure because its ultimate purpose is unclear, even if the motion is granted, regarding how counsel intends to use the deposition of Mr. Janetzki, which deposition, under certain circumstances can be used as evidence. See 46 C.F.R. 502.209(a)(3), Federal Rule 32(a)(3), F.R.C.P.

I am unable, of course, to rule upon the pending motion at this time and may be handicapped in ruling on it even after receiving respondent's reply without knowing precisely what the deposition contains and whether, as Mr. Kogan asserts, Mr. Janetzki's testimony was that of an expert that did not reveal confidential, proprietary or sensitive information in regard to respondent's operations.

The burden of justifying confidential treatment, of course, rests on respondent and I must balance respondent's claims to such treatment against the legitimate needs of Mr Kogan to prove his case. At the present time, however, I am interested in knowing what the parties believe to be the prospects of settlement rather than of continued litigation.

I will therefore await respondent's reply to the instant motion and continue to encourage the parties to explore the possibility of settlement or other means to reach a prompt conclusion to this case and will at the appropriate time make further inquiries into such matters and issue any rulings that may be necessary.

Norman D. Kline

Norman D. Kline
Administrative Law Judges